

FILE #: 30945

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ORPHEUS GRANT,

Plaintiff(s),

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, OFFICER KEVIN COOPER SHIELD #
954, OFFICER "JOHN DOE #1" SHIELD 26611, OFFICER
"JOHN DOE #2", names fictitious intended being that of
NYPD Officers that assaulted Plaintiff, and NEW YORK
CITY TRANSIT AUTHORITY,

Defendant(s).

-----X
Plaintiff, complaining of the defendants by his attorney upon information and belief, respectfully
allege:

AS AND FOR A FIRST CAUSE OF ACTION
IN BEHALF OF PLAINTIFF ORPHEUS GRANT

1. That at all the times herein mentioned the defendant THE CITY OF NEW YORK,
hereinafter referred to as "CITY," was and still is a municipal corporation, duly
organized and existing under and by virtue of the laws of the State of New York.
2. That at all the times herein mentioned the defendant NEW YORK CITY POLICE
DEPARTMENT, hereinafter referred to as "NYCPD," was and still is a public benefit
corporation, duly organized and existing under and by virtue of the laws of the State of
New York.
3. That at all the times herein mentioned the defendant NEW YORK CITY TRANSIT
AUTHORITY, hereinafter referred to as "NYCTA," was and still is a public benefit
corporation, duly organized and existing under and by virtue of the laws of the State of
New York.

4. That at all the times herein mentioned, the defendants OFFICER KEVIN COOPER SHIELD # 954, OFFICER "JOHN DOE #1" SHIELD 26611, OFFICER "JOHN DOE #2", names fictitious intended being that of NYPD Officers that assaulted Plaintiff, were and still are police officers employed by defendant CITY, NYCPD and NYCTA.
5. That notice of plaintiff's claim and notice of intention to sue and of the time when and the place where the injuries alleged herein were incurred and sustained was duly filed by the plaintiffs with the Corporation Counsel of the defendant CITY and with the Comptroller of the defendant CITY and with the Legal Department of the defendants NYCPD and NYCTA and upon the defendants Police Officers, within 90 days after the cause of action herein accrued.
6. That pursuant to notice given by the defendants, a hearing was held.
7. That more than 30 days have elapsed since the demand for claim upon which this action was founded was presented to the Comptroller of the defendants CITY and the Legal Department of the defendants NYCPD and NYCTA, for adjustment and that they have neglected and refused to make adjustment or payment thereof for said period of 30 days after such presentation, and that this action is commenced within one year after the cause of action accrued.
8. That on or about 12/30/2018, defendants, OFFICER KEVIN COOPER SHIELD # 954, OFFICER "JOHN DOE #1" SHIELD 26611, OFFICER "JOHN DOE #2", names fictitious intended being that of NYPD Officers that assaulted Plaintiff, did verbally and physically abuse plaintiff and did commit an assault and battery upon plaintiff, causing severe personal injuries, and serious bodily harm.
9. Hereinafter the defendants, OFFICER KEVIN COOPER SHIELD # 954, OFFICER "JOHN DOE #1" SHIELD 26611, OFFICER "JOHN DOE #2", names fictitious intended being that of NYPD Officers that assaulted Plaintiff, are referred to as Police Officers.
10. That the aforesaid acts of defendant were willful, intentional and unwarranted and without any just cause or provocation.

11. That at all times herein mentioned, and specifically on 12/30/2018, defendant, OFFICER KEVIN COOPER SHIELD # 954, was on duty as a police officer for defendants CITY and NYCPD.
12. That at all times herein mentioned, and specifically on 12/30/2018, defendant, OFFICER "JOHN DOE #1" SHIELD 26611, was on duty as a police officer for defendants CITY and NYCPD.
13. That at all times herein mentioned, and specifically on 12/30/2018, defendant, OFFICER "JOHN DOE #2", names fictitious intended being that of NYPD Officers that assaulted Plaintiff was on duty as a police officer for defendants CITY, NYCPD and NYCTA.
14. That at all the times herein mentioned, and specifically 12/30/2018, defendant Police Officers were in uniform and/or plainclothes as police officers for defendant CITY, NYCPD and NYCTA.
15. That at all the times herein mentioned, and specifically 12/30/2018, defendant Police Officers were acting within the scope of their employment as police officers for defendants CITY, NYCPD and NYCTA.
16. That the defendants CITY, NYCPD and NYCTA, their agents, servants and/or employees were negligent in performing their duties; in failing to protect plaintiff from actual and imminent harm, in hiring and/or retaining in its employ personnel who are violent and/or possess violent propensities, persons, who would assault and commit battery on law abiding individuals without reasonable cause; in failing to adequately train and supervise its personnel; and in causing, allowing and/or permitting unwarranted use of force against plaintiff; all in violation of statutes, ordinances and regulations.
17. That at all the times herein mentioned, the actions of the defendants were negligent and not in accordance with proper police procedures and regulations.
18. That said occurrence and the resulting personal injuries to the said plaintiff were caused through no fault of his own, but were caused solely and wholly by reason of the negligence of the aforementioned defendants as set forth above.

19. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as she has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A SECOND CAUSE OF ACTION
IN BEHALF OF PLAINTIFF ORPHEUS GRANT

20. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

21. That on or about 12/30/2018, the defendant Police Officers did verbally, physically, intentionally, maliciously and deliberately abuse the plaintiff, with neither provocation nor privilege, and did commit an assault and battery upon plaintiff, causing severe personal injuries and serious and permanent bodily harm to the plaintiff ORPHEUS GRANT.

22. That at the time of such malicious prosecution, the defendant Police Officers were employees of the defendants and was acting as the defendants' agent in doing the acts complained of herein and was acting within the scope of his authority and while he was acting or attempting to be acting in the defendant's interest.

AS AND FOR A THIRD CAUSE OF ACTION
IN BEHALF OF PLAINTIFF ORPHEUS GRANT

23. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.

24. That or about 12/30/2018, the defendant Police Officers were negligent in causing and allowing and/or permitting their body or parts thereof to come in contact with the person of the plaintiff in such a manner as to cause severe personal injuries and serious and permanent bodily harm to the plaintiff ORPHEUS GRANT.

AS AND FOR A FOURTH CAUSE OF ACTION
IN BEHALF OF PLAINTIFF ORPHEUS GRANT

25. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.
26. That on or about 12/30/2018, the defendants' acts constituted an willful and wanton disregard of the safety and Civil and constitutional rights of the plaintiff .
27. That by reason of the foregoing, the said plaintiff was caused to sustain serious, harmful and permanent injuries; has been and will be caused great pain, shock, and mental anguish and suffering; has become and still continues to be sick, sore, and still continues to be sick, sore, lame and disabled; has been as he has been informed and verily believes, permanently injured; has incurred and will incur great expense for medical care and attention; has been and will be prevented from attending to his usual duties; vocation and avocation for such period of time in all to his damages both compensatory and exemplary in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR VIOLATION OF PLAINTIFF ORPHEUS GRANT

28. Plaintiff repeats and realleges each and every allegation of the preceding cause of action as if fully set forth herein at length.
29. On 12/30/2018, plaintiff suffered severe injuries and trauma to head, neck, Back, wrists,

body limbs, emotional distress, physical, psychological and emotional disturbances when the defendant, attacked plaintiff, threw him to the ground without provocation at the location known as the Canal Street Subway Station, at the entrance on Centre Street, between Walker Street and Canal Street, New York, New York,.

30. Defendants used unreasonable, unnecessary and excessive force while detaining plaintiff.

31. That as a result of the aforescribed actions, including the use of excessive physical force and negligent infliction of emotional harm upon the plaintiff, the defendant deprived plaintiff of the *rights, privileges and immunities* secured by the constitution and laws of the United States and Fourteenth Amendment.

32. As a result of the aforescribed actions, the defendant individually deprived plaintiff of his *right to liberty without due process* of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments.

33. The amount and type of the physical force used upon plaintiff by defendant was unnecessary, improper, excessive and not reasonably justified under any circumstances.

34. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. 1981, 1983, 1985 and 1986.

35. The aforementioned acts of the defendant were intentional, willful malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights and physical well-being.

36. The aforementioned use of force and infliction of emotional harm caused immediate injury in the form of physical and emotional pain, suffering, shock, fright, humiliation embarrassment, disgrace and deprivation of plaintiff's constitutional rights.

37. That it was necessary for plaintiff to hire the undersigned attorney to file this lawsuit

and upon judgment, plaintiff is entitled to an award of attorney's fees under 42 U.S.C. § 1988(b).

38. WHEREFORE, plaintiff demands judgment against the defendants in the FIRST cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants in the SECOND cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants in the THIRD cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants in the FOURTH cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, plaintiff demands judgment against the defendants in the FIFTH cause of action in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court, together with the costs and disbursements of this action.

Dated: New York, New York
September 4, 2019

Yours, etc.



PETER MAY, ESQ.
SUBIN ASSOCIATES, LLP
Attorneys for Plaintiffs
150 Broadway
New York, New York 10038

STATE OF NEW YORK)
COUNTY OF NEW YORK)

The undersigned, an attorney, admitted to practice in the Courts of the State of New York.
The undersigned affirms that the following statements are true under the penalties of perjury.

That deponent is associated with the attorney for the plaintiff in the within action; that deponent has read the foregoing **COMPLAINT** and knows the contents thereof; that same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes it to be true. Deponent further says that the reason this verification is made by deponent and not by plaintiff is that plaintiff resides outside of the County where your deponent holds his office.

The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows:

Information and investigation in the file.

DATE: NEW YORK, NEW YORK
September 4, 2019



PETER MAY, ESQ.

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ORPHEUS GRANT

Plaintiff(s),

-against-

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SHIELD # 954, OFFICER "JOHN DOE #1" SHIELD 26611, OFFICER "JOHN DOE #2", names fictitious
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AUTHORITY

Defendant(s).

SUMMONS AND COMPLAINT

SUBIN ASSOCIATES, L.L.P.

Attorneys for Plaintiff(s)

Office and Post Office Address, Telephone

150 Broadway, 23rd Floor

New York, NY 10038

Telephone (212) 285-3800

WE DO NOT ACCEPT SERVICE BY ELECTRONIC TRANSMISSION

To:

Attorney(s) for

Service of a copy of the within is hereby admitted

Dated;

.....
Attorney(s) for

PLEASE TAKE NOTICE



That the within is a (certified) true copy of an ORDER entered in the office **NOTICE OF** of the clerk of the
within named court on , 20__.

ENTRY



That an Order of which the within is a true copy will be presented for **NOTICE OF** settle to the Hon.one of the
judges of the within

SETTLEMENT named court,

at

on

, 20__ , at 10:00 a.m.

Dated:

Attorney(s) for Defendant(s)

SUBIN ASSOCIATES, L.L.P.

Attorneys for plaintiff(s)

150 Broadway, 23rd Floor

New York, NY 10038

(212) 285-3800